



CHAPTER xxxvii.

An Act to empower the Corporation of Blackburn to provide and run omnibuses to make further provision with respect to their tramway water and electricity undertakings and the health local government and finance of the borough and for other purposes. [10th May 1929.] A.D. 1929.

WHEREAS the borough of Blackburn is a municipal borough subject to the Acts relating to municipal corporations and is a county borough within the meaning of the Local Government Act 1888 and the mayor aldermen and burgesses of the borough acting by the council (in this Act respectively referred to as "the borough" and "the Corporation") are the urban sanitary authority for the borough :

And whereas the Corporation are the owners of a tramway undertaking comprising tramways within and outside the borough and it is expedient to empower them to provide and work omnibuses within and beyond the borough as by this Act provided :

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to their tramway water and electricity undertakings :

And whereas it is expedient that further and better provision should be made with reference to streets

[Ch. xxxvii.] *Blackburn* [19 & 20 GEO. 5.]
Corporation Act, 1929.

A.D. 1929. buildings infectious disease and sanitary matters and
 — otherwise for the local government health improvement
 and finance of the borough and that the powers of the
 Corporation in relation thereto should be enlarged and
 extended :

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows (that is to say) :—

	£
For the provision of omnibuses - -	30,480
For the erection of buildings for the purposes of the omnibuses of the Corporation - - - -	7,500

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Blackburn Corporation Act 1929.

2. This Act is divided into Parts as follows :—

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- Part I.—Preliminary.
- Part II.—Omnibuses &c.
- Part III.—Water.
- Part IV.—Electricity.
- Part V.—Lands.
- Part VI.—Streets and buildings.
- Part VII.—Infectious disease and sanitary provisions.
- Part VIII.—Common lodging-houses.
- Part IX.—Hackney carriages.
- Part X.—Police provisions.
- Part XI.—Finance.
- Part XII.—Miscellaneous.

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 Division of
 Act into
 Parts.

3. Subject to the provisions of this Act and unless the subject or context otherwise requires the several words and expressions to which by the Acts wholly or partially incorporated with this Act and by the Public Health Acts meanings are assigned shall in this Act have in relation to the relative subject-matter the same respective meanings And in this Act—

Interpreta-
 tion.

- “ The borough ” means the borough of Blackburn ;
- “ The Corporation ” means the mayor aldermen and burgesses of the borough ;
- “ The council ” means the council of the borough ;
- “ The Minister ” means the Minister of Health ;
- “ The town clerk ” “ the treasurer ” “ the medical officer ” “ the surveyor ” and “ the sanitary inspector ” mean respectively the town clerk the treasurer the medical officer of health the surveyor and the sanitary inspector of the borough and respectively include any person duly appointed by the Corporation to discharge temporarily the duties of any such officers ;
- “ The Act of 1882 ” means the Blackburn Improvement Act 1882 ;
- “ The Act of 1898 ” means the Blackburn Corporation (Tramways &c.) Act 1898 ;
- “ The Act of 1901 ” means the Blackburn Corporation Act 1901 ;

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- “ The Act of 1908 ” means the Blackburn Corporation Act 1908;
- “ The Act of 1922 ” means the Blackburn Corporation Act 1922;
- “ The Lands Clauses Acts ” means those Acts and the Acquisition of Land (Assessment of Compensation) Act 1919;
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ The tramway undertaking ” means the tramway undertaking of the Corporation as from time to time authorised;
- “ The omnibus undertaking ” means the omnibus undertaking of the Corporation as from time to time authorised;
- “ Omnibus ” means any stage carriage moved by animal power or by mechanical power (including in that expression steam electrical and every other motive power not being animal power) obtained from some internal source;
- “ Road authority ” means with reference to any road or part of a road over which any proposed omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road;
- “ The water undertaking ” means the water undertaking of the Corporation as from time to time authorised;
- “ The water limits ” means the limits within which the Corporation are from time to time authorised to supply water;
- “ The gas undertaking ” means the gas undertaking of the Corporation as from time to time authorised;
- “ The electricity undertaking ” means the electricity undertaking of the Corporation as from time to time authorised;
- “ The electricity limits ” means the limits within which the Corporation are from time to time authorised to supply electricity;

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“The markets undertaking” means the markets undertaking of the Corporation as from time to time authorised;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; and

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

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PART II.

OMNIBUSES &C.

Power to
provide and
run omni-
buses.]

4.—(1) Subject to the provisions of this Act the Corporation may provide and maintain (but shall not manufacture) and may run omnibuses within the borough and with the consent of the Minister of Transport and of the local authority of the district along any route outside the borough but within five miles measured in a direct line from the town hall Blackburn. Provided that the consent of a local authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the said Minister.

(2) In the case of any application under the provisions of this section for the consent of the Minister of Transport the Corporation shall give notice in writing of their proposals to the road authority (where they are not also the local authority) and shall publish notice of such proposals in the London Gazette and in such other manner as the said Minister shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto.

(3) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphic line of the Postmaster-General.

(5) The Corporation shall perform in respect of the omnibuses provided under this section such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(6) The provisions of section 51 and section 56 of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways. A.D. 1929. —

(7) The Corporation may make byelaws for regulating the travelling in or upon their omnibuses and for the prevention of nuisances in or upon the same or in or against any premises held in connection therewith. Provided that any such byelaws shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws.

5.—(1) (a) Before the Corporation commence to run omnibuses over any road or part of a road it shall be determined by agreement between the Corporation and the road authority (where they are not the Corporation) or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Act of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any county bridge or district bridge and if so what sum of money (if any) per mile of road so to be adapted altered or reconstructed or what sum of money (if any) in respect of any such bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening. Adaptation of roads.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether or not they intend to run omnibuses over the road or part of a road or bridge in question.

(c) If the Corporation give notice in writing to the road authority that they intend to run omnibuses over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction

A.D. 1929. — of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any such bridge which is not executed within three years from the date on which the Corporation shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(f) For the purposes of this subsection the expression "county bridge" shall include every bridge maintainable by a county council and in respect of such bridge the county council shall be deemed to be the road authority and the expression "district bridge" shall include every bridge maintainable by a district council and in respect of such bridge the district council shall be deemed to be the road authority.

(2) Any payment made to a road authority under this section in respect of any main road retained by them under subsection (2) of section 11 of the Local Government Act 1888 or maintained by them under subsection (4) of that section shall be credited to the county council in ascertaining the amount payable by them under either of the said subsections.

(3) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line belonging to or used by the Postmaster-General the enactments contained in section 7

of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act. A.D. 1929.
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(4) The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any highway by the omnibuses of the Corporation.

(5) An agreement under this section with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of that county council.

(6) For the purposes of this section the expression "road authority" shall not include a railway or canal company.

6. Nothing in this Act shall impose any obligation upon or enlarge any obligation of any railway or canal company to strengthen adapt alter or reconstruct any bridge or road maintainable by them respectively. As to railway and canal bridges &c.

7.—(1) The powers of running omnibuses under the provisions of this Act on any road or part of a road outside the borough may at the expiration of ten years from the date on which such running commences and at the expiration of any subsequent period of ten years be determined by the Minister of Transport on the application of the local authority of the district in which such road or part of a road is situate upon such terms as the said Minister may determine. As to cesser of powers.

(2) Before issuing an order to determine the said powers the Minister of Transport shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

8. If the Corporation do not within three years from the giving of the consent of the Minister of Transport to the running by the Corporation of omnibuses on any route outside the borough provide a service of omnibuses on such route or having provided shall discontinue any such service the said Minister may on the application of any local authority within whose district the route or any part of the route is situate and after considering Provision in event of certain powers not being exercised within prescribed period.

A.D. 1929. — any representation which may be made on behalf of the Corporation by order declare that unless a service of omnibuses be provided within such period as the said Minister may by such order prescribe the powers of the Corporation under this Act in respect of the provision and running of omnibuses on such route or part of such route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Corporation under this Act in relation to the provision and running of omnibuses on such route or part of a route shall cease :

Provided that this section shall not apply or have effect in the event of the failure of the Corporation to provide a service of omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Corporation.

Fares and
charges.

9.—(1) The Corporation may demand and take for every passenger travelling upon their omnibuses including every expense incidental to such conveyance a fare not exceeding three halfpence per mile and in computing the said fare a fraction of a mile shall be deemed to be a mile.

(2) Every artisan mechanic or daily labourer travelling on the omnibuses of the Corporation for the purpose of going to his work before the hour of eight o'clock in the morning on any day of the week except Sunday Christmas Day and Good Friday and returning therefrom not earlier than twelve noon on the same day shall for each such double journey be charged a fare not exceeding the fare which the Corporation for the time being charge for each such single journey.

(3) The Corporation may demand and take for parcels carried in or upon their omnibuses charges not exceeding such maximum charges as may from time to time be approved by the Minister of Transport.

Passengers'
luggage and
small
parcels.

10.—(1) Every passenger travelling in or upon the omnibuses of the Corporation may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat required for a passenger nor be of a form or description to annoy or inconvenience other passengers.

(2) The Corporation may if they think fit convey in or upon the omnibuses small parcels not exceeding fifty-six pounds in weight. A.D. 1929. —

11. The Corporation may if they think fit convey in or upon their omnibuses dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger. Conveyance of dogs.

12. If at any time after three years from the passing of this Act or after three years from the date of any order made in pursuance of this section in respect of the omnibuses of the Corporation it is represented in writing to the Minister of Transport by the local authority of any district in which any omnibuses of the Corporation are worked or run or by twenty inhabitant ratepayers of that district or by the Corporation that under the circumstances then existing all or any of the fares or other charges demanded and taken on such omnibuses should be revised the said Minister may (if he think fit) direct an inquiry and if the person holding the inquiry report that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Minister may by order in writing alter modify reduce or increase all or any of the fares or charges to be taken on the said omnibuses and thenceforth such order shall be observed until the same is revoked or modified by an order of the said Minister made in pursuance of this section. Periodical revision of fares and charges.

13. The fares and charges authorised by this Part of this Act shall be paid to such persons and at such places upon or near to the omnibus routes and in such manner and under such regulations as the Corporation may by notice to be annexed to the lists of fares and charges appoint. Payment of fares and charges.

14.—(1) The Corporation and any local authority empowered to run omnibuses in any borough or urban or rural district adjacent to the borough or adjacent to any borough or urban or rural district in which any route over which the Corporation are for the time being empowered to run omnibuses is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the omnibus services which the contracting parties are Working and other agreements.

A.D. 1929. empowered to provide subject to the provisions of the respective Acts under which such omnibus services are authorised.

(2) The Corporation and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Act of any omnibus services within the borough or on any route over which the Corporation are for the time being empowered to run omnibuses subject (in the case of omnibus services authorised by statute) to the provisions of the respective Acts under which such omnibus services are authorised.

(3) The Corporation and any such local authority company body or person as aforesaid may also enter into and carry into effect agreements for all or any of the following purposes (that is to say) :—

- (a) The working user management and maintenance of any omnibuses lands depôts buildings sheds and property provided in connection with any such omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services;
- (b) The supply by any of the contracting parties under and during the continuance of any such agreement under this section of omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants;
- (c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from, or destined for any omnibus service of the contracting parties; and
- (d) The payment collection and apportionment of the fares and charges and other receipts arising from any such omnibus service as aforesaid.

(4) The Corporation shall not enter into or carry into effect any agreement under the provisions of this section in relation to any omnibus service lands depôts buildings sheds or property beyond the borough otherwise than with the consent of the local authority of the district within which such omnibus service lands depôts buildings

sheds or property are situate Provided that on com- A.D. 1929.
 plaint being made to the Minister of Transport that
 such consent is unreasonably withheld the said Minister
 may if he think fit by order dispense with such consent.

(5) The Corporation shall not enter into or carry
 into effect any agreement under the provisions of this
 section in relation to the working user management or
 maintenance of any omnibus service at a greater
 distance than ten miles measured in a direct line from
 the town hall Blackburn except omnibus services in
 the county boroughs of Bolton or Bury or the urban
 districts of Turton Tottington and Ramsbottom.

15.—(1) If and so long as—

- (a) an adequate and satisfactory service of tram-
 cars or trolley vehicles is provided along any
 tramway or trolley vehicle system in the
 borough of Accrington as now existing (in
 this subsection referred to as "the said
 borough") which tramway or trolley vehicle
 system is now owned or worked by the
 mayor aldermen and burgesses of the
 borough of Accrington (in this section referred
 to as "the Accrington Corporation"); or
- (b) an adequate and satisfactory service of omni-
 buses is provided by the Accrington Cor-
 poration in the said borough in pursuance of
 existing statutory powers;

For pro-
 tection of
 Accrington
 and Darwen
 Corpora-
 tions.

the Corporation shall not without the consent of the
 Accrington Corporation run or enter into any agreement
 for the running of any service of omnibuses in the said
 borough in competition with any such service of tram-
 cars trolley vehicles or omnibuses as the case may be of
 the Accrington Corporation except for the purpose of
 serving any area beyond the said borough if and so long
 as no passenger conveyed by such service of omnibuses
 run by or in agreement with the Corporation is on any
 one journey both taken up and set down in the said
 borough.

(2) If and so long as—

- (a) an adequate and satisfactory service of tram-
 cars or trolley vehicles is provided along any
 tramway or trolley vehicle system in the
 borough of Darwen as now existing (in this

A.D. 1929.

subsection referred to as "the said borough") which tramway or trolley vehicle system is now owned or worked by the mayor aldermen and burgesses of the borough of Darwen (in this section referred to as "the Darwen Corporation"); or

- (b) an adequate and satisfactory service of omnibuses is provided by the Darwen Corporation in the said borough in pursuance of existing statutory powers;

the Corporation shall not without the consent of the Darwen Corporation run or enter into any agreement for the running of any service of omnibuses in the said borough in competition with any such service of tramcars trolley vehicles or omnibuses as the case may be of the Darwen Corporation except for the purpose of serving any area beyond the said borough if and so long as no passenger conveyed by such service of omnibuses run by or in agreement with the Corporation is on any one journey both taken up and set down in the said borough.

(3) Any question as to whether an adequate and satisfactory service of tramcars trolley vehicles or omnibuses is provided as aforesaid or whether there is or would be such competition as aforesaid shall be determined by the Minister of Transport whose decision shall be final.

Shelters
and
waiting-
rooms.

16. The Corporation may on any of their omnibus routes erect and maintain shelters or waiting-rooms for the accommodation of passengers and may with the consent of the local authority and road authority use for that purpose portions of the public streets or roads.

Cloak-rooms
&c.

17.—(1) The Corporation may provide cloak-rooms and rooms or sheds for the storage of bicycles and other vehicles at any dépôt or building used by them in connection with the tramway undertaking or the omnibus undertaking and at any suitable places on their tramway or omnibus routes and the Corporation may make charges for the use of such cloak-rooms and sheds and for the deposit of articles and things and bicycles and other vehicles therein.

(2) The Corporation may use for the purposes of this section portions of the public streets or roads but

only with the consent of the road authority and of the local authority of the district. A.D. 1929.

18. The Corporation may run through omnibuses along any route on which the Corporation are for the time being authorised to run omnibuses and such omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by any such omnibus a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such omnibus. Provided that during the running of such through omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of omnibuses. Through omnibuses.

19. The Corporation may appoint the stations and places from which their omnibuses shall start or at which they may stop for the purposes of taking up and setting down passengers and may fix the time during which such omnibuses shall be allowed to remain at any such station or place but any such appointment and fixing of time shall (as respects any station or place outside the borough) be subject to the consent of the local authority of the district within which that station or place is appointed which consent shall not be unreasonably withheld and any question as to whether or not any such consent is unreasonably withheld shall be determined by the Minister of Transport. Corpora-
tion may
appoint
stopping
and start-
ing places.

20. The Corporation shall not exercise the powers contained in the sections of this Act of which the marginal notes are "Shelters and waiting-rooms" "Cloak-rooms &c." and "Corporation may appoint stopping and starting places" upon any road or bridge belonging to or maintained by or at the expense of any railway or canal company or so as to obstruct the convenient access to or exit from any station dépôt or property of a railway or canal company. For protec-
tion of
railway
and canal
companies.

21.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to any of their omnibus routes signs or directions indicating the position of stopping places for omnibuses. Provided that in cases where the Corporation are not the owners of such Attachment
of signs
indicating
stopping
places to
lamp-posts
&c.

A.D. 1929. — lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing or belonging to any local or road authority except with the consent of the authority in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to a railway or canal company without the consent of such company in writing.

For pro-
tection of
local
authorities.

22. Notwithstanding anything in this Act contained the powers of the sections of this Act of which the marginal notes are "Shelters and waiting-rooms" "Cloak-rooms &c." and "Attachment of signs indicating stopping places to lamp-posts &c." shall not be exercised in any local area outside the borough except with the consent of the local authority of that area which consent shall not be unreasonably withheld. Provided that any question as to whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.

Lost
property.

23. Any property found in any tramcar or omnibus of the Corporation or in any shelter or room used in connection with the tramways or omnibuses of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks

and the proceeds thereof carried to the revenue account of the tramway undertaking. A.D. 1929.

24. If any person wilfully and unlawfully does or causes to be done with respect to any omnibus of the Corporation anything which is calculated to obstruct or interfere with the working thereof or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and shall be liable to a penalty not exceeding twenty pounds. Penalty for malicious damage.

25.—(1) Where the Corporation consider that any tree hedge or shrub overhangs any street outside the borough so as to be likely to obstruct or interfere with the passage of their omnibuses or to obstruct the view of drivers thereof the Corporation may require the authority by whom powers may be exercised under section 23 of the Public Health Act 1925 to exercise those powers in respect of the trees hedges or shrubs to which the requisition refers. Trees overhanging highways on omnibus routes.

(2) If the said authority have not adopted the said section and refuse or neglect to do so or having adopted the said section or being a county council refuse or neglect to exercise those powers in accordance with the said requisition the Corporation may apply to the Minister for and the Minister may make an order conferring on the Corporation all or any of the powers with reference to such street of a local authority under the said section in respect of the street or streets in which the said trees hedges or shrubs are situated.

(3) On the making of such order any authority having powers under section 23 of the Public Health Act 1925 shall during the continuance of the order cease to exercise such powers in respect of the said street or streets to the extent to which they have been conferred on the Corporation.

26. The Corporation may by resolution declare that any byelaws for the time being in force on the tramways of the Corporation shall with such modifications as they may deem necessary apply to and be enforceable with respect to their omnibuses and the premises held in connection therewith and the persons Application of tramway byelaws.

A.D. 1929. travelling in or upon the same Provided that any
— modifications as aforesaid shall be subject to the
approval of the Minister of Transport.

Omnibus under-
taking to form
part of tramway
undertaking.

27. Subject to the provisions of this Act the omnibus undertaking authorised by this Act shall form part of the tramway undertaking.

Accounts of
tramway
under-
taking.

28. The Corporation shall keep the accounts in respect of the tramway undertaking so as to show separately (so far as may be reasonably practicable) the receipts and expenditure in regard to (a) the tramways of the Corporation and (b) the omnibuses which the Corporation are empowered to provide and run and in such accounts capital shall be distinguished from revenue.

Accounts
to be fur-
nished to
Minister of
Transport.

29. The Corporation shall every year within three months after the closing of their financial year or such longer period as the Minister of Transport may allow furnish to the said Minister a copy of the annual accounts of the tramway undertaking.

PART III.

WATER.

Extension
of time for
construction
of reservoirs.

30. Section 21 (Extension of time for construction of Brennand and Whitendale reservoirs) of the Blackburn Corporation Water Act 1911 shall be read and have effect as if the words "thirty years" were inserted therein instead of the words "twenty years."

Limit of
pressure.

31. The water supplied by the Corporation within any part of the water limits need not at any time be delivered at a pressure greater than that to be afforded by gravitation from the service reservoir or other source from which the supply for that part of the water limits is given.

Discharge
of water
into
streams.

32.—(1) For the purpose of executing constructing laying down enlarging extending repairing cleansing emptying or examining any of the water works of the Corporation they may cause the water in any such works to be discharged into any available stream ditch or watercourse Provided that any water so discharged shall so far as may be reasonably practicable be free

from mud solid or offensive matter or matter injurious to fish or spawn or spawning beds. A.D. 1929.

(2) In the exercise of the powers conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

(3) The powers of this section shall not be exercised so as to damage or injuriously to affect the railways or works of any railway company.

33.—(1) From and after the usual quarter day next after the passing of this Act—

Charges for
water
supplies.

(a) Section 159 (Rents for domestic supply) of the Act of 1882 shall be read and have effect as if the words “fifteen pounds” were inserted therein instead of the words “ten pounds”; and

(b) Section 162 (Charge for several waterclosets &c.) of the said Act shall be read and have effect as if the words “ten shillings” were inserted therein instead of the words “six shillings.”

(2) The proviso to section 160 (Valuation to be according to the assessment to the poor’s rate) of the Act of 1882 is hereby repealed.

(3) Notwithstanding anything contained in any Act whenever the total receipts from revenue in respect of the water undertaking shall exceed the total of the payments and expenses on account of revenue in respect thereof an amount equivalent to the amount of such excess shall whenever and so soon as there shall be an amount sufficient for the purpose be applied to the reduction of rents rates and charges for the supply of water by the Corporation.

34.—(1) At any time after the passing of this Act on the application of the Corporation or of any local authority having jurisdiction within the water limits the Minister by order may vary by way either of increase or decrease the maximum rents rates and charges for the

Revision of
water
charges.

A.D. 1929. — supply of water authorised by the Acts relating to the water undertaking and the basis on which such rents rates and charges may be reckoned.

(2) The rents rates and charges from time to time prescribed shall be sufficient so far as can be estimated to enable the water undertaking to be carried on without loss after providing a reasonable sum as a contribution towards the reserve fund of the water undertaking so long as such fund does not amount to the maximum for the time being prescribed therefor.

(3) In the absence of exceptional circumstances the Minister shall not vary the said rents rates and charges at less intervals than three years.

Water rate
in case of
two or more
houses in
one occupa-
tion.

35. Where two or more houses or buildings are connected by any internal means of communication or by any bridge subway yard or passage not being a public highway and such houses or buildings are in occupation of one and the same company or person they shall be deemed for domestic water rate purposes to be one tenement having a rateable value equal to the aggregate rateable value of the separate houses or buildings.

Supply to
houses
partly
used for
trade &c.

36.—(1) The Corporation shall not be bound to supply with water otherwise than by measure—

- (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any workhouse hospital asylum (whether public or private) sanatorium school club hotel public-house or inn; or
- (c) any public institution which is habitually occupied by at least twenty persons.

(2) Where a supply of water to a farm-house is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by measure but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farm-house at the ordinary rate.

(3) The minimum quarterly charge for a supply of water by measure to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale from time

to time in force for a domestic supply furnished to a dwelling-house of the same net annual value. A.D. 1929.

37. The price to be charged by the Corporation for a supply of water by measure shall not exceed two shillings and sixpence per thousand gallons. Price for supply by measure.

38.—(1) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by measure for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of such hose-pipe or other similar apparatus shall be taken by measure and paid for accordingly. Charges for supplies for refrigerating apparatus &c.

(2) Where a person who takes a supply of water for domestic purposes from the Corporation desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation shall be entitled to require that all water so used shall—

- (a) be taken by measure and paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the Corporation.

39. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any officer of the Corporation may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds. Extension of power to inspect premises.

40.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are Power supply water fittings.

A.D. 1929. required or permitted by their regulations and may
— provide all materials and execute all work necessary or
proper in that behalf and the reasonable charges of the
Corporation in providing such materials and executing
such work shall be paid by the person requiring the
same.

(2) Any fittings let for hire under the provisions of
this section shall not be subject to distress or to the
landlord's remedy for rent or be liable to be taken in
execution under any process of any court or any pro-
ceedings in bankruptcy against the persons in whose
possession the same may be. Provided that such fittings
have upon them respectively a distinguishing metal
plate affixed to a conspicuous part thereof or a dis-
tinguishing brand or other mark conspicuously impressed
or made thereon sufficiently indicating the Corporation
as the actual owners thereof.

(3) Subject to the proviso to subsection (2) of this
section all fittings let by the Corporation on hire as
aforesaid shall notwithstanding that they be fixed or
fastened to any part of any premises in which they may
be situate or to the soil under any premises at all times
continue to be the property of and removable by the
Corporation. Provided that nothing in this subsection
shall affect the amount of the assessment for rating of
any premises upon which any such fittings are or shall
be fixed.

(4) Provided as follows :—

(a) The Corporation shall so adjust the charges
to be made by them for any such fittings or
for the fixing repairing or removal thereof as
to meet any expenditure by them under the
powers of this section in connection there-
with including interest upon any moneys
borrowed for those purposes and all sums
applied to sinking fund for repayment of
moneys so borrowed;

(b) When a demand note delivered by the Cor-
poration to a consumer includes a sum
charged by the Corporation in respect of
providing such fittings or the repairing fixing
or removal thereof such sum shall be clearly
stated in such demand note;

(c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year. A.D. 1929.
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41. If by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Corporation by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given notice to the occupier of such house or premises and in any case where the communication pipe is repairable by the owner thereof to such owner not less than twenty-four hours' previous notice of their intention so to enter. Power to Corporation to repair communication pipes.

42. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a fine not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage sustained by them. In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe Injuring meters &c.

A.D. 1929. — meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registration by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be paid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Penalty
for closing
valves &c.

43. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage sustained by them Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

Penalty for
opening
valves &c.

44. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purposes of affording such

supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly. A.D. 1929.
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45.—(1) The Corporation may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water. Byelaws for preventing pollution of water.

(2) The areas within which any byelaws made under this section shall be in force shall be defined in such byelaws and may comprise the whole or any part of the areas from or through which the said waters flow.

(3) The provisions with respect to byelaws to be made by an urban authority contained in sections 182 to 185 of the Public Health Act 1875 shall apply to byelaws made by the Corporation under this section.

(4) Any landowner whose interests may be affected by any byelaws made under this section shall be entitled on request to be furnished with a copy thereof and to object to the confirmation thereof.

(5) All byelaws made under this section shall be subject to the approval of the council of every district comprising any part of the area within which it is proposed that they shall be in force Provided that such approval shall not be necessary where in the opinion of the Minister it has been unreasonably withheld.

(6) The Corporation shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws or who are required by such byelaws to construct any works or to do any act or thing which could not lawfully be required by the local sanitary authority of the district in which such lands are situate or which for reasons which appear to such local sanitary authority to be sufficient have or has not in fact been required by such local sanitary authority and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

A.D. 1929.

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Amendment
of section 62
of Act of
1922.

46.—(1) Section 62 (Byelaws for preventing waste of water) of the Act of 1922 shall extend to enable the Corporation to make byelaws with respect to the testing by the Corporation of the water fittings referred to in the said section before such fittings are fixed in any premises supplied with water by the Corporation and to make a reasonable charge for such testing.

(2) The byelaws made under the said section 62 may apply to all premises to which the Corporation afford a supply of water.

PART IV.

ELECTRICITY.

Supply to
premises
partly
outside
electricity
limits.

47. The Corporation may by agreement supply electrical energy to any house or building which or the curtilage of which is partly within and partly outside the electricity limits in the same manner as if such premises were wholly within such limits.

Use for
lighting
purposes of
electricity
supplied
for power.

48.—(1) No consumer to whom electricity is supplied by the Corporation shall without the consent in writing of the Corporation use or suffer to be used (whether after transformation or conversion or not) for purposes of lighting or illuminating or for any process operation or purpose involving or requiring the use of light (all of which purposes are in this section referred to as “lighting purposes”) the whole or any part of any electricity supplied to him by the Corporation for any other purpose.

(2) Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for any purpose other than lighting purposes shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as they may for the time being be charging for the supply of electricity for the purpose for which the electricity is used by the consumer for all or any portion of the electricity which has been supplied to him for any other purpose within one year previous to the date when the Corporation shall sue for any penalty as aforesaid.

(3) Any court having jurisdiction to impose such penalty may and on the application of the Corporation shall decide as to the portion (if any) of such electricity in respect of which the higher charge as aforesaid shall be payable to the Corporation. A.D. 1929.
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(4) The provisions of section 18 of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

49.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of electricity taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for the premises of such consumer the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882. As to maximum power which may be demanded.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

50.—(1) In any case in which the Corporation have fixed or set up or shall hereafter fix or set up in any dwelling-house or part of a dwelling-house any lamps meters electric lines fittings motors apparatus and things for lighting or motive power or for any other purposes for which energy can or may be used (all of which are in this section referred to as and included in the expression “fittings”) the Corporation may make and recover from the owner or occupier for the time being of such dwelling-house or part of a dwelling-house such charges as they may determine by way of consideration for the provision and laying fixing or setting up and maintenance of such fittings and of the whole or part of so much of the service cable as is laid upon the property of the owner or in the possession of the occupier of such dwelling-house or part of a dwelling-house and for the purposes of the Electricity (Supply) Acts 1882 to 1928 the said fittings and portion As to method of charge in certain cases for fittings.

A.D. 1929. of service cable shall subject as hereinafter provided be
— the property of the Corporation :

Provided that—

- (a) the basis on which such charges are to be determined shall be such as shall be approved by the Electricity Commissioners;
- (b) the owner or occupier for the time being of any such dwelling-house or part of a dwelling-house as aforesaid shall be entitled at any time to require—

(i) that the charge made by the Corporation as aforesaid shall be commuted by the payment of a sum in gross equal to the balance for the time being outstanding in the books of the Corporation in respect of the capital expenditure incurred by them in the provision laying fixing or setting up of the fittings in such dwelling-house or part of a dwelling-house and upon such payment the said fittings shall become the property of such owner or occupier; or

(ii) that in lieu of making such charges as aforesaid after the date of such requirement the Corporation shall as from that date enter into an agreement with him under which the fittings provided and laid fixed or set up by the Corporation in such dwelling-house or part of a dwelling-house will become vested in him at the expiration of such period not exceeding five years as such owner or occupier may require in consideration of the payment by him to the Corporation during that period of annual or other periodical instalments of such amount as may be agreed between him and the Corporation;

and as from the date of any such payment as is referred to in the foregoing paragraph (i) or the expiration of any such period as is referred to in the foregoing paragraph (ii) the Corporation shall cease to be liable for the maintenance of such fittings as aforesaid;

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(c) the owner or occupier for the time being of such dwelling-house or part of a dwelling-house (not being the owner or occupier on whose application the fittings were laid fixed or set up) shall be entitled at any time to require the Corporation to remove and the Corporation shall on being so required remove the said fittings.

(2) The Corporation may require that the whole or any part of any sum payable pursuant to this section shall be paid quarterly in advance.

(3) The Corporation shall have the like remedies in the event of non-payment of any sum payable pursuant to this section and the like rights of recovery of any such sum as they have under the provisions of the Electricity (Supply) Acts 1882 to 1928 and the Electric Lighting (Clauses) Act 1899 with respect to charges for electricity.

(4) Nothing in this section shall alter or affect any agreement for the time being subsisting between the Corporation and the owner or occupier of any such dwelling-house or part of a dwelling-house as aforesaid.

(5) Notice of the provisions of this section shall be given to the owner of any dwelling-house or part of a dwelling-house when the Corporation fix or set up therein any fittings and also to the occupier of such dwelling-house or part of a dwelling-house when such occupier makes application to the Corporation for a supply of electricity thereto.

51. In any case in which the Corporation lawfully cut off a supply of electricity by reason of any act omission or default of a consumer or any other person they may recover from the person to whom the supply was theretofore furnished or from any other person on account of whose act omission or default such supply was cut off the reasonable expenses incurred by them in such cutting off in like manner as charges for electricity are recoverable by the Corporation.

Power to recover cost of cutting off supplies.

52.—(1) The powers conferred by section 24 of the Electric Lighting Act 1882 of entering premises for the purposes mentioned in that section shall extend to enable the Corporation to enter any premises to which electricity is or has been supplied by them (whether for the time being occupied or not) and in or upon which they

Further powers as to entry upon premises.

A.D. 1929. — have reason to believe that there is or has been any contravention of any of the Acts or Orders relating to the electricity undertaking or of any byelaw or regulation made thereunder and to inspect such premises and any electric lines wires fuses casings switches fittings lamps lampholders or other apparatus therein and in any case in which any such contravention is found to exist or to have existed to cut off and disconnect the supply of electricity to the premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 section 16 of the Electric Lighting Act 1909 or this section are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he be unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

(3) Any person who shall refuse or neglect to admit any officer appointed by the Corporation to any premises which he is entitled to enter in pursuance of the said section 24 the said section 16 or this section or shall hinder any such officer from entering any such premises or from exercising the powers contained in any of the said sections shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by any railway or canal company for the purposes of their railway or canal and forming part of any station or goods depôt.

As to use
of trans-
formers.

53. Where a separate transformer is provided at the expense of the Corporation for the purpose of affording a supply of electricity to any consumer the Corporation may use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided.

Notice to
discontinue
supply of
electricity.

54. A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to

the office of the Corporation or be given by the consumer personally at such office. A.D. 1929.

55. In the event of a meter of a construction and pattern approved by the Board of Trade or Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it is proved to have first arisen during the then current quarter. The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Period of
error in
defective
meter.

56. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the purposes of the electricity undertaking :

Attach-
ment of
brackets &c.
to buildings.

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :
- (2) Any consent of an owner and any order of a court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the court shall have the same power as under proviso (1) :

A.D. 1929.
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(3) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building :

(4) No brackets wires and attachments shall be attached to any bridge or other work of any railway company without the previous consent in writing of that company.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

Byelaws
as to appa-
ratus and
fittings.

57. The Corporation for the purpose of preventing fire in or injury to any building or premises supplied with electricity by the Corporation or injury to any person may make byelaws with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section Provided that nothing contained in this section or in any byelaw to be made thereunder shall apply to or in respect of any building or premises (other than a dwelling-house) belonging to a railway or canal company.

Charges
for special
readings of
electricity
meters.

58. The Corporation may levy and recover such charges as they think fit for taking at the request of and for the convenience of any consumer at a time other than that of the periodical meter readings the reading of any electricity meter fixed in any premises provided that such charges shall not exceed the sum of two shillings and sixpence for each reading.

PART V.

LANDS.

Further
powers for
acquisition
of lands.

59.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit

A.D. 1929.
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improvement or development of the borough and with the consent of the Minister may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof. Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund and general rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

(a) in or towards the extinguishment of any loan raised by them under any statutory borrowing power such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister; or

(b) in such other manner as may be approved by the Minister.

60.—(1) Notwithstanding anything in any other Act or any Order to the contrary the Corporation may retain hold and use for such time and for such purposes as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act from time to time in force (other than the Housing Act 1925) and may

Retention
and disposal
of lands.

A.D. 1929. — sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained :

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Powers
with
reference
to leases
of lands.

61.—(1) The Corporation may accept a surrender of any lease or letting of lands granted by them and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of such lands as aforesaid.

(2) The Corporation may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Corporation of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Corporation in their discretion :

A.D. 1929.

Provided that any such lease granted by the Corporation shall be subject to similar conditions and limitations as are prescribed in the section of this Act of which the marginal note is " Retention and disposal of lands " with respect to leases granted thereunder.

62. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of any local Act or Order relating to the Corporation.

Purchase of
lands for
exchange.

63. The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of any local Act or Order relating to the Corporation or which may be in the neighbourhood of any street improvement authorised by any such Act with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Power to
reinstate
owners of
property.

64.—(1) The Corporation may with the consent of the Minister lay out and develop any lands belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and other buildings and construct sewer pave flag channel and kerb streets roads and ways on any of such lands and may sell lease exchange or otherwise dispose of any such lands houses shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

Power to
develop
lands.

A.D. 1929.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey or lease the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any of the lands to which this section applies at a price or rent or for a consideration of a value less than the current market value of such lands but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister is necessary or has been obtained.

(5) The provisions of this section shall not apply to any lands acquired or appropriated by the Corporation for the purposes of education.

PART VI.

STREETS AND BUILDINGS.

Further
powers as
to future
line of
street.

65.—(1) The Corporation may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

(2) The owner may and if so required by the Corporation shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement

of the Corporation under this section and carry out such requirement. A.D. 1929.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Corporation under this section the Corporation shall make compensation to the owner lessee and tenant of any such building or erection and to any or either of them for any loss or damage sustained by such owner lessee or tenant in consequence of such building or erection being pulled down set back or altered as aforesaid.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

66.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings from time to time in force distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section referred to as "the building line") and the Corporation shall be deemed to have approved any building line unless within six weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof. Building line in streets.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway

A.D. 1929. authority) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the six weeks aforesaid without their approval or beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

(5) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

(8) Any person deeming himself aggrieved by any requirement of or by the Corporation under this section

may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

A.D. 1929.

67. The Corporation may when carrying out any private street works with the consent in writing of the greater part in rateable value of the owners of the houses or land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do anything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the private street works in such street. Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street :

Planting
of trees &c.
in private
streets.

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

68.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation.

Erection of
retaining
walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a

A.D. 1929. penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to
hoardings
and similar
structures.

69.—(1) (a) No fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the road or street shall be erected or brought forward on any land in any street within the borough—

- (i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or
- (ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 100 of the Housing Act 1925; or
- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expense incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense

take down or remove any structure erected or maintained in contravention of those provisions. A.D. 1929.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

70.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the direction or the distance to towns railway stations public buildings and other places of a public character. Direction signs.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

71.—(1) The Corporation may (a) erect or fix police telephone call boxes in such positions in any street road or public place within the borough as they think fit and (b) with the consent of the road authority and with the consent and at the cost of the local authority (which cost the local authority are hereby authorised to incur) erect or fix street fire alarms in such positions as may be agreed in any street road or public place in the district of any local authority with whom the Corporation. Police telephone call boxes and fire alarms.

A.D. 1929. — have entered into an agreement for the use of their fire brigade. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(2) The Corporation shall not erect any boxes or alarms under the powers of this section so as to cause interference with or obstruct or render less convenient the access to or exit from any station depôt or property belonging to any railway or canal company.

Fire-plugs
&c.

72. Any person who shall cover over wilfully or negligently obstruct or interfere with the convenient access to any police telephone call box fire alarm fire-plug or hydrant or who shall remove or efface any plate or mark indicating the position of any such call box alarm plug or hydrant shall be liable to a penalty not exceeding five pounds.

Means of
escape from
buildings
in case of
fire.

73.—(1) Every new building which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital nursing home orphanage boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) From and after the first day of January one thousand nine hundred and thirty the Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as a tavern hotel hospital nursing home orphanage boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be

A.D. 1929.
—

provided if in their opinion such building is not provided with proper and sufficient means of escape from each storey the upper surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

(3) Where the means of escape in case of fire provided in connection with any such building as aforesaid shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Corporation make such alterations in the said means of escape as may be reasonably necessary and shall if so required by the Corporation provide further or other means of escape.

(4) (a) Any person aggrieved by any requirement of the Corporation under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within seven days after the receipt of the requirement provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(b) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under either of the said subsections.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(6) If the owner allege that the occupier of the building ought to bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court and thereupon the county court after hearing the occupier may make such order as appears to the court just and equitable in all the circumstances of the case.

(7) The means of escape in case of fire provided in connection with any such building as aforesaid shall not

A.D. 1929. — be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

(8) This section shall not apply to any premises to which section 14 and section 15 of the Factory and Workshop Act 1901 apply.

(9) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(10) Where an existing building is newly converted after the passing of this Act into flats it shall be deemed to be a new building within the meaning of this section.

Means of
ingress
to and
egress from
large shops
and clubs.

74.—(1) The provisions of section 36 of the Public Health Acts Amendment Act 1890 shall extend and apply to shops and departmental stores where more than twenty-five persons are employed and to any club registered under the provisions of section 91 of the Licensing (Consolidation) Act 1910 whether existing before or after the passing of this Act. Provided that in the application of the provisions of the said section 36 to any club the said section shall be read and have effect as if the words "for the use of the public" were omitted from subsection (1) thereof.

(2) Any person aggrieved by a requirement of the Corporation under the said section 36 in its application to shops departmental stores or clubs in pursuance of the powers of this section may within fourteen days after the date on which the Corporation give notice of their requirement to such person appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem fit and may award costs. Provided that such person shall give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk.

(3) Notice of the right to appeal shall be endorsed on every notice of the Corporation under this section.

(4) For the purposes of this section section 7 of the Public Health Acts Amendment Act 1890 shall not apply.

75. Nothing in this Part of this Act except the section of which the marginal note is "As to hoardings and similar structures" shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway or canal company in the exercise of their statutory powers or to any land held or acquired by or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or land is used or held by such company primarily for railway or canal purposes respectively.

A.D. 1929.

—
Saving for
railway and
canal
companies.

PART VII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

76.—(1) If the medical officer shall certify in writing that any person—

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

Removal of
infirm and
diseased
persons in
certain
cases.

(b) is suffering from any grave chronic disease; and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interest of the health of such person and for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination of such person by a registered medical practitioner to be nominated by them (if they think fit) may make an order for the removal of such person to a suitable hospital infirmary poor law or other institution or other suitable place provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period or periods each not exceeding three months as may be

A.D. 1929. determined by any further order or orders made under and in accordance with the provisions of this section :

Provided that not less than three clear days before making any application under this subsection for the removal of any person the medical officer shall give to the guardians of the poor of the Blackburn Union (in this section referred to as "the guardians") notice in writing of his intention so to do.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this section or to some person being in charge of such person three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The cost of the removal of any person to a hospital infirmary or other institution or place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which a person is so detained the Corporation may and if so required by the court shall make towards the maintenance of any dependants of that person such contributions as the Corporation think fit or as may be directed by the court as the case may be :

Provided that the guardians shall be entitled to appear and be heard upon the application and any matters relating thereto and may in the exercise of their powers under the Poor Law Act 1927 assume such obligations with regard to the maintenance of the said person and his dependants as may be agreed upon between the guardians and the Corporation.

(4) An order under this section may be addressed to such officer of the Corporation or to such constable as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the

circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. A.D. 1929

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) Nothing in this section or in any order made thereunder shall authorise the removal of any person to or the detention of any person in any poor law institution except with the consent in writing of the guardians or shall affect or interfere with the exercise or discharge by the board of guardians of any poor law union of any of their powers or duties.

(7) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Corporation so to do either generally or in any particular case in which those powers are proposed to be exercised.

77.—(1) If the medical officer have reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a dangerous infectious disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease :

Entry into premises in case of dangerous infectious disease.

Provided that the medical officer shall not under the powers of this section—

(a) enter any premises except between the hours of seven in the morning and ten in the evening ;
or

(b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

(2) For the purposes of this section the expression " dangerous infectious disease " has the same meaning as in section 60 of the Public Health Act 1925.

(3) Any person who obstructs the medical officer in the exercise of his power under this section shall in

A.D. 1929. — addition to any other punishment to which he may be subject be liable to a penalty not exceeding five pounds.

Medical
practi-
tioners to
notify
cases of
food
poisoning.

78.—(1) Every medical practitioner attending on a person who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

(2) The Corporation shall pay to every medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

(3) Every person required by this section to give a notification who fails to give the same in accordance with this section shall be liable to a penalty not exceeding forty shillings.

Further
powers in
relation to
unsound
food.

79. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or sanitary inspector or any other officer duly authorised by the Corporation in that behalf to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections intended for sale or in the course of delivery after sale for the food of man and the provisions of such sections shall apply accordingly :

Provided that nothing in this section shall authorise the inspection examination and search of any cart or other vehicle belonging to a railway or canal company and used by them for the purposes of their traffic or of any basket sack bag or parcel in the possession of such company as carriers thereof.

Discon-
tinuance of
offensive
trade.

80.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and section 44 of the Public

Health Act 1925 and in the opinion of the Corporation A.D. 1929.
it is inexpedient in the interests of public health that
such trade should be carried on in such premises the
owner or occupier of the same may be required after six
months' notice in writing by the Corporation under the
hand of the town clerk to cease to use such premises
for the carrying on of such offensive trade Provided
that the formation or expression by the Corporation of
an opinion under this subsection shall be deemed to be
a determination of the Corporation within the meaning
of the section of this Act of which the marginal note is
"Appeal" and that the provisions of that section shall
accordingly apply with respect to such opinion as well
as to any requirement by the Corporation under this
subsection.

(2) Any person who fails or neglects to comply with
the provisions of subsection (1) of this section shall be
liable to a penalty not exceeding five pounds and to a
daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease
to use such premises for the carrying on of an offensive
trade they shall pay to such person such compensation
for any loss sustained by him in consequence of the
action of the Corporation as may be agreed upon between
the Corporation and such person or as failing agreement
shall be determined by arbitration under the provisions
of the Arbitration Act 1889 Provided that this sub-
section shall not apply in the case of any premises with
respect to which the consent of the Corporation shall
have been given for a period only unless the Corporation
shall have required that the user of such premises for
the carrying on of an offensive trade shall cease before
the expiration of such period.

(4) The powers of this section shall be in addition
to and not in derogation of the existing powers of the
Corporation with reference to offensive trades.

81.—(1) Section 60 (Regulation dustbins) of the Regulation
Act of 1908 shall be read and have effect as if any ware- dustbins.
house or shop were referred to therein in addition to any
dwelling-house.

(2) Every owner or occupier having provided any
such dustbin whether pursuant to this section or otherwise
shall maintain the same in good order and condition

A.D. 1929. Provided that every such owner or occupier shall if so required by the Corporation pay to the Corporation on each first day of April after such requirement such sum not exceeding five shillings as the Corporation may from time to time by resolution determine in respect of the maintenance (including the repair and renewal thereof) of such dustbin and such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin.

(3) From and after the passing of this Act it shall not be lawful for any person to use any dustbin for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(4) Any owner or occupier who fails to comply with his obligation under subsection (2) of this section in regard to the maintenance of such dustbin shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (3) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

PART VIII.

COMMON LODGING-HOUSES.

Periods
of letting
as affecting
common
lodging-
houses.

82. No house or part of a house shall be exempt from the provisions with respect to common lodging-houses of the Public Health Acts or any local Act relating to the Corporation or any byelaws made thereunder on the ground that accommodation in such house or part of a house is let for a longer period or longer periods than one day or is not let for a less period than one week.

PART IX.

HACKNEY CARRIAGES.

Inspection
and certifi-
cation of
taximeters.

83.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the borough to be tested and inspected and they

may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage. A.D. 1929.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

84. An occasional licence for a public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence. Power to grant occasional licences.

85. No person shall be entitled to drive a motor vehicle licensed by the Corporation as a hackney carriage or omnibus unless he shall have satisfied the Corporation of his ability to drive and for that purpose the Corporation may impose such reasonable tests as they may think fit. Power to impose tests on motor drivers.

86. The provisions of the Town Police Clauses Act 1847 shall extend to empower the Corporation to make byelaws for declaring that to the extent determined by such byelaws those provisions and the byelaws of the Corporation in force with respect to hackney carriages except so much of such byelaws as relates to the fixing of fares shall apply to every horse-drawn or motor vehicle standing or plying for hire notwithstanding that such vehicle stands or plies for hire on private premises only. Provided that this section shall not apply to any such vehicle which is kept and used ordinarily for the purpose of being let on hire by the hour or the day or for longer periods of hire or for journeys under special Provisions as to certain vehicles let for hire.

A.D. 1929. — contract or to an omnibus as defined in the Town Police Clauses Act 1889 or to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the driver or conductor of such vehicle.

Insurance
by hackney
carriage
proprietors.

87. The Corporation may in their discretion refuse to grant a licence to ply for hire with a hackney carriage or omnibus if the applicant fail to satisfy them that he effects and keeps on foot an insurance with a responsible insurance company against or makes adequate financial provision for meeting any liability that may be incurred by him in respect of any injury or damage occasioned by such hackney carriage or omnibus to any person or property but in the event of any licence to ply for hire with an omnibus being refused under this section the applicant shall be entitled to appeal to the Minister of Transport under the provisions of subsection (3) of section 14 of the Roads Act 1920 and all the provisions of that subsection shall apply accordingly :

Provided that in the case of an application to the Corporation by a railway company for the grant of a licence to ply for hire the provisions of this section shall not apply.

PART X.

POLICE PROVISIONS.

Regula-
tions for
controlling
traffic.

88.—(1) The Corporation may from time to time make regulations prescribing within the central area—

- (a) the streets which are not to be used for traffic by vehicles of any specified class or description either generally or during specified hours ;
- (b) the streets or parts of streets along which vehicular traffic shall pass in one specified direction only either generally or during specified hours ;
- (c) the places at which by reason of danger to the public or congestion of traffic omnibuses shall not stop to take up or set down passengers :

Provided that—

- (i) any regulation made under paragraph (a) of this subsection shall not apply to any vehicle

ordinarily engaged in the delivery or collection of goods at or from any premises within the central area whilst so engaged; and

A.D. 1929.
—

- (ii) no street shall be included in any regulation made under paragraph (b) of this subsection if and so long as such street is used by tram-cars proceeding along such street in opposite directions.

(2) Before any regulations made under this section shall come into force the Corporation shall submit the same to the Minister of Transport for his approval and shall give notice of the subject-matters of the regulations by advertisement in a local newspaper circulating in the borough and in the London Gazette and in such other manner (if any) as the said Minister may direct. The said notice shall name a place where copies of the regulations can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the regulations may make representations thereon to the said Minister and that any such person shall at the same time send a copy of his representations to the town clerk.

(3) The Minister of Transport shall consider any regulations submitted to him by the Corporation and any representations thereon which may be duly made and may approve the regulations with or without modifications or may disapprove the same.

(4) Before approving any regulations the Minister of Transport may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the Corporation shall pay to the said Minister any expenses incurred by him in relation to any such inquiry including the expenses of any witnesses summoned by the person holding the inquiry and a sum to be fixed by the said Minister for the services of such person.

(5) The Corporation shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed regulations by

A.D. 1929. advertisement in a local newspaper circulating in the borough and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The regulations shall take effect as approved by the Minister of Transport and shall come into force on a date to be fixed by him.

(7) The Corporation shall cause notice to be given of all regulations approved under this section by advertisement in a local newspaper circulating in the borough and otherwise in such manner as may be prescribed by the Minister of Transport and shall also during the continuance of any regulation approved under paragraph (b) of subsection (1) of this section cause to be erected and maintained in suitable positions a warning notice in a form approved by the said Minister indicating the effect of the regulation and the street to which it relates.

(8) As respects any regulation made and approved under this section (subject to any modification or extension made by the Minister of Transport as hereinafter provided) any person who—

(a) shall contravene any regulation under paragraph (a) of subsection (1) of this section after warning given by word or signal by a police constable in uniform; or

(b) shall drive or cause to be driven any vehicle in any street in relation to which a regulation shall be in force under paragraph (b) of subsection (1) of this section and a warning notice shall have been erected pursuant to subsection (7) of this section in contravention of such regulation; or

(c) shall contravene any regulation under paragraph (c) of subsection (1) of this section

shall be liable to a penalty not exceeding forty shillings.

(9) The Minister of Transport on the application of any company body or person appearing to him to be sufficiently interested and alleging that any regulation made under this section is unsuitable for the traffic requirements of the borough may if satisfied as to the correctness of such allegation and after considering any representations made to him by the Corporation modify

or extend the regulation to which the application A.D. 1929.
relates.

(10) In this section—

- (a) “the central area” means the portion of the borough comprised within a circle having a radius of half a mile from the town hall; and
(b) “specified” means specified in any regulations made or approved under this section.

89.—(1) The Corporation may from time to time make regulations prescribing—

Regula-
tions as to
stands or
stopping
places of
omnibuses.

- (a) as respects omnibuses in general or omnibuses of any particular class or used on any particular route or running according to a published time-table the stands which may be occupied exclusively by them and the places where they may stop for longer than is necessary for the purpose of picking up and setting down passengers; and
(b) the time during which any omnibus shall be allowed to remain at a prescribed stand or stopping place;

and any omnibus standing upon any such stand or stopping place in accordance with regulations made under this section shall be deemed to be within the exception in the ninth paragraph of section 28 of the Town Police Clauses Act 1847.

(2) Upon the coming into force of the regulations first made under this section the sixth paragraph of section 6 of the Town Police Clauses Act 1889 shall cease to extend to the borough and any byelaws made by the Corporation under that paragraph shall be repealed.

(3) Where the Corporation propose to make regulations under this section they shall cause notice of their proposal and a statement of the effect of the proposed regulations to be published in at least one newspaper circulating within the borough and shall serve a copy of the notice upon the proprietor of every omnibus licensed to ply for hire within the borough.

(4) Every such notice shall indicate the date (which shall not be less than twenty-eight days) within which

A.D. 1929. — any objection to the regulations shall be sent in writing to the Corporation and shall contain a notification of the place at which copies of the proposed regulations may be obtained free of charge.

(5) The Corporation shall consider and determine any objection to the proposed regulations which is sent to them in writing within the time fixed in that behalf and shall send notice of their decision to the objector who if he be dissatisfied with their decision may within fourteen days after the receipt of the notice appeal to the Minister of Transport.

(6) A notification of the right of appeal under this section shall be included in any notice sent by the Corporation of their decision on an objection to the regulations and upon any appeal being made to the Minister of Transport notice in writing of the appeal and of the grounds thereof shall be given by the appellant to the Corporation.

(7) The Minister of Transport shall consider any appeal duly made to him and may make such order in the matter as he thinks fit and his decision shall be final.

(8) Before making any order under this section the Minister of Transport may and if an appeal duly made be not withdrawn shall (unless the appeal appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the provisions in subsections (4) and (5) of the section of this Act the marginal note whereof is "Regulations for controlling traffic" as to expenses and notices of local inquiries shall extend to any local inquiry so directed by the said Minister.

(9) Where an objection has been made to regulations proposed by the Corporation under this section the regulations shall not be sealed by the Corporation until after the expiration of the time within which an appeal may be made by the objector to the Minister of Transport or if an appeal to the said Minister have been made by the objector until after the determination or withdrawal of the appeal.

(10) Any company body or person running omnibuses in the borough may at any time apply to the

Minister of Transport to modify or extend any regulation made under this section on the ground that such regulation as in force for the time being has been found to be or has become unsuitable for the traffic requirements of the borough or has been unfairly enforced and upon any such application the said Minister after considering any representations made to him by the Corporation may modify or extend the regulation to which the application relates. A.D. 1929. —

(11) The Corporation shall not make any regulation under the powers of this section prescribing any stand or stopping place for omnibuses so as to cause any interference with or render less convenient the access to or exit from any station depôt or property belonging to any railway or canal company.

90. Section 24 of the Municipal Corporations Act 1882 which relates to the proof of byelaws shall extend to regulations made by the Corporation in pursuance of the sections of this Act of which the marginal notes are "Regulations for controlling traffic" and "Regulations as to stands or stopping places of omnibuses" in the same manner as the said section 24 extends to byelaws so made. Evidence of regulations made by Corporation.

91. The powers conferred by section 21 of the Town Police Clauses Act 1847 shall extend to enable the Corporation on days appointed for carnivals or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours. Power to make regulations as to traffic on carnival &c. days.

92. It shall be lawful for the Corporation at all times of public processions rejoicings or illuminations or on emergency to cause barricades to be erected across any street and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings. Power to stop traffic on occasions of emergency.

93.—(1) Any person or persons intending to organise or form a public or ceremonial procession or a circus procession or procession of wild animals through the Notice of processions to be given.

A.D. 1929.

streets of the borough (other than a public or ceremonial procession which is regularly held through such streets) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at the head police office forty-eight hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

(2) If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

Power of
constables
to enforce
byelaws as
to parks
&c.

94. From and after the passing of this Act every police constable shall have the same power of enforcing byelaws made by the Corporation under the Public Health Acts relating to any park or place of public resort or recreation ground under the control of the Corporation as is given to the servants of the Corporation by the byelaws for the time being in force under the provisions of the said Acts.

Unautho-
rised riding
upon
vehicles.

95. Every person who shall ride upon or cause himself to be carried or drawn by any vehicle without the consent of the owner or driver or conductor or inspector in charge thereof shall be liable to a penalty not exceeding forty shillings.

PART XI.

FINANCE.

Power to
borrow and
repayment
of borrowed
moneys.

96.—(1) The Corporation may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any public general Act borrow at interest for the purposes set forth in the first column of the following table any sums not exceeding the respective sums set forth in the second column thereof and all moneys so borrowed shall be chargeable on the revenues of the Corporation and shall be repaid within the respective periods set forth in the third column thereof and the

Corporation may apply any sum so borrowed for the said purposes respectively (that is to say) :— A.D. 1929.

Purpose.	Amount.	Period for repayment.
(1) For paying the costs charges and expenses of this Act as hereinafter defined.	£ The sum requisite.	Five years from the passing of this Act.
(2) For the provision of omnibuses	30,480	Eight years from the date or dates of borrowing.
(3) For the erection of buildings in connection with the omnibus undertaking.	7,500	Thirty years from the date or dates of borrowing.

(2) The Corporation may also with the sanction of the Minister of Transport borrow such further moneys as may be necessary for any purpose of the tramway undertaking.

(3) The Corporation may also with the sanction of the Electricity Commissioners borrow such moneys as may be necessary for any purpose of the electricity undertaking.

(4) The Corporation may also with the sanction of the Minister borrow such moneys as may be necessary—

(a) for any purpose of the water or gas undertakings respectively;

(b) for any purpose of the markets undertaking including the provision of a fund for working capital; and

(c) for any other of the purposes of this Act.

(5) Any moneys borrowed under the powers of subsections (2) (3) and (4) of this section shall be repaid within such periods not exceeding sixty years as may be prescribed by the authority with whose sanction such moneys are borrowed and all moneys so borrowed shall be chargeable on the revenues of the Corporation.

97. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by the creation and issue of Corporation stock or by mortgage or partly in one way and partly in the other: Mode of raising money.

A.D. 1929.

Certain
provisions
of Act
of 1898 to
apply.

98. The provisions contained in the following sections of the Act of 1898 (namely) :—

Section 105 (Sections 236 237 and 238 of the Public Health Act to be available);

Section 106. (Application of borrowed moneys);

Section 107 (Appointment of receiver);

Section 109 (Protection of lender from inquiry);
and

Section 117 (Corporation not to regard trusts);
shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to all moneys borrowed under the powers of this Act :

Provided that the said sections shall be read and have effect as if the Minister were referred to therein in lieu of the Local Government Board.

As to Cor-
poration
stock.

99.—(1) The proviso to subsection (1) of section 296 (Creation of Corporation stock) of the Act of 1882 is hereby repealed.

(2) Notwithstanding anything contained in the Act of 1882 the Corporation may exercise any statutory borrowing power by the creation and issue of a further new class or classes of redeemable stock at such prices and bearing such dividends as the Corporation may determine by the resolution creating such stocks.

(3) Each class of stock created under subsection (2) of this section shall bear a distinguishing name or number to be given by the resolution creating it and shall be created on and subject to such terms and conditions as that all stock in the class shall bear one and the same rate of dividend and shall become redeemable as hereinafter provided at the expiration of the same period from the first creation of the stock.

(4) After the expiration of such a period from the creation of the class of stock under subsection (2) of this section as the Corporation shall by the resolution creating the same declare all stock comprised therein shall be redeemable at par at the option of the Corporation and within such a period (not exceeding sixty years) from the first creation of such class of stock as the Corporation shall by such resolution declare the whole of the stock comprised therein shall be redeemed or purchased and extinguished.

(5) All stock created and issued under this section shall be charged in the same manner as and rank *pari passu* with stock issued under the Act of 1882 and shall otherwise be subject to the provisions of that Act as altered by subsequent Acts. A.D. 1929.
—

(6) A separate loans fund to bear the name given to it by the resolution creating each class of stock shall be established and formed in respect of each class which may be created and issued by the Corporation by virtue of this section and all the provisions of the said Act of 1882 as altered by subsequent Acts in regard to the Blackburn Corporation Consolidated Loans Fund (No. 2) shall *mutatis mutandis* apply to the loans funds so to be established and formed.

100.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power. Return to
Minister
with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appear to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that

A.D. 1929.

the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision (other than the foregoing provisions of this section) of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

(5) Section 117 (Information and returns to Minister of Health) of the Act of 1922 is hereby repealed.

Period for repayment of loans under Municipal Corporations Act 1882.

101. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister shall in each case prescribe.

As to section 234 of Public Health Act 1875.

102. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Public Health Act 1875 and the Sanitary Acts as defined by that Act shall be deducted from the outstanding loans contracted by the Corporation under those Acts.

Consolidated loans fund.

103.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March one thousand nine hundred and twenty-nine the Corporation may, (if they think fit) establish a fund to be called "the consolidated loans fund" to which shall be paid as and when they are received—

(a) all moneys borrowed by the Corporation whether by issue of bonds stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied

by the Corporation with due authority to another capital purpose; A.D. 1929.

- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to payment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on bonds stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and
- (c) in the payment of dividends and interest on the bonds stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

A.D. 1929.
—

(3) The Corporation may (if they think fit) pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required subject to the following conditions :—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowing.

(4) Subject to any priority existing at the passing of this Act all bonds stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of bonds stock or other securities of the Corporation shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Receipt in
case of
persons not
sui juris.

104. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Interest on
mortgages
held jointly.

105. Where more persons than one are registered as joint holders of any security of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

106. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk or registrar of stock of the Corporation of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

A.D. 1929.

—
Evidence of
transfer or
trans-
mission
of securities.

107. Notwithstanding anything contained in section 2 of the Poor Rate Assessment and Collection Act 1869 there may be recovered at one time from the occupier of any rateable hereditament to whom that section applies such portion of the general rate as would be payable on the day on which a complaint of non-payment is made if the rate had been made payable by equal quarterly payments extending over the period for which the rate is made.

As to
recovery
of general
rate.

108. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made shall be defrayed out of the general rate fund and general rate.

Expenses
of execu-
tion of
Act.

PART XII.

MISCELLANEOUS.

109.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the borough and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money raised from the local rate they may subject to any condition or restriction attaching

Acceptance
and admin-
istration
of gifts for
public
purposes.

A.D. 1929. — to such power expend money so raised in the execution of such works in relation to the subject matter of the trust.

(2) This section shall not extend to property relating to affairs of the church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the treasurer and shall be made up and audited as part of the general accounts of the Corporation.

Service of
summons
on members
of council.

110. Notwithstanding anything contained in the Second Schedule to the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of each member of the council by post by prepaid letter at the ordinary rate of postage.

General
provisions
as to
byelaws.

111. Except where otherwise provided by this Act all byelaws from time to time made by the Corporation under the powers of this Act shall be made under and according to the provisions contained in sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority.

Appeal.

112. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Parts VI (Streets and buildings) VII (Infectious disease and sanitary provisions) and X (Police provisions) of this Act or by any conviction or order made by a court of summary jurisdiction or a petty sessional court under any provision of this Act may if no other mode of appeal be provided by this Act or by any other Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction or a petty sessional court the Corporation may in like manner appeal.

Penalty on
occupier
refusing
execution
of work.

113. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under or in pursuance of Part VI (Streets and buildings) and Part VII (Infectious

disease and sanitary provisions) of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall be liable to a daily penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1929.

114. The provisions of sections 102 and 103 of the Public Health Act 1875 shall extend and apply to the purposes of Part VI (Streets and buildings) and Part VII (Infectious disease and sanitary provisions) of this Act as if those purposes had been mentioned in the said section 102. Power to enter premises.

115. Whenever the Corporation or the surveyor under any enactment or byelaw from time to time in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly. In executing works for owner Corporation liable for negligence only.

116. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act from time to time in force in the borough it becomes necessary to prove the appointment Evidence of appointments authority &c.

A.D. 1929.

or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Breach of conditions of consent of Corporation.

117. Where under this Act or under any general or local Act from time to time in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Consents of Corporation to be in writing.

118. All consents given by the Corporation under the provisions of this Act or of any local Act order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Saving for indictments &c.

119. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Expenses may be declared private improvement expenses.

120. The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they

were incurred in accordance with the provisions of A.D. 1929. section 257 of the Public Health Act 1875.

121. Where under any local Act from time to time in force the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under such local Act are recoverable by the Corporation from the owners shall unless otherwise expressly provided be paid by the owners of such buildings in such proportions as shall be determined by the Corporation or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

122. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any enactment from time to time in force within the borough.

Protection of Corporation and officers from personal liability.

123. When any compensation costs damages or expenses is or are by any local enactment from time to time in force within the borough directed to be paid and the method of determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

Compensation how to be determined.

124. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of any local enactment from time to time in force within the borough under which the Corporation or any of their officers are empowered to take proceedings may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Informations by whom to be laid.

125. Proceedings for the recovery of any demand made under the authority of this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the

Recovery of demands.

A.D. 1929. demand does not exceed the amount recoverable in that court in a personal action.

Inquiries by
Minister of
Transport.

126. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of or applicable to the Corporation the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Incorporation of
certain
existing
provisions.

127. The provisions contained in the sections of the Act of 1882 the Act of 1901 and the Act of 1922 respectively the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply as if they were re-enacted in this Act.

The sections hereinbefore referred to are—

The Act of 1882—

Section 275 (Accounts to be kept by borough treasurer and audited in the same manner as the borough accounts);

Section 276 (Accounts to be made out and annually published);

Section 277 (As to audit of borough fund account).

The Act of 1901—

Section 127 (Recovery of penalties &c.).

The Act of 1922—

Section 134 (Inquiries by Minister of Health except the words "(not exceeding five guineas each day)"; and

Section 138 (Powers of Act cumulative).

Crown
rights.

128. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

129. The costs charges and expenses preliminary to A.D. 1929.
and of and incidental to the preparing applying for
obtaining and passing of this Act as taxed and Costs of
Act.
ascertained by the taxing officer of the House of Lords
or of the House of Commons shall be paid by the Cor-
poration out of the general rate fund or out of such
other funds and in such proportions as the Corporation
shall determine or out of moneys to be borrowed under
this Act for that purpose.

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